

21SMCV01145 21SMCV01145

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This is a request to issue an out of state commission for two depositions. The depositions, if they occur, are for two Mexican nationals residing in Mexico.

The depositions are sought as to Mr. and Ms. Escamilla (not married to each other—Mr. Escamilla is Ms. Escamilla's father). Defense counsel states that she has been trying to contact them since 2023. Ms. Escamilla did not respond, but Mr. Escamilla stated that he was open to a meeting. According to the defense, he would testify that he did not know that plaintiff used a Mexican address as his address when applying for immigration status with Mexico. This is relevant, the defense claims, because either Fuller was lying to the Mexican government (which is Fuller has already said under oath is what occurred) or he was living in Mexico and that undercuts his claim that he was in a committed relationship and living with McCourt. After the summary judgment proceedings concluded, defense counsel renewed the attempt to talk to these two witnesses, but both ignored here communications and plaintiff refused to assist the defense, purportedly insisting on formal discovery.

Ms. Escamilla is now plaintiff's wife. Defendants believe that he was involved in a committed relationship with her at the same time that he and defendant McCourt were allegedly in an exclusive committed relationship and formed their Marvin agreement. Defendants intend to inquire as to the timing of the relationship between plaintiff and Ms. Escamilla to disprove the relationship with Ms. McCourt.

Mr. Escamilla allegedly has knowledge as to architectural plans related to land purchased in Mexico. The land was purchased allegedly by 18-Rabbit, an asset that plaintiff and McCourt allegedly owned as part of the Marvin arrangement. Mr. Escamilla will also be questioned on the

alleged use of his address by plaintiff when plaintiff applied for immigration status in Mexico. Defendants contend that Mr. Escamilla might also testify that plaintiff is not actually married to Ms. Escamilla. According to defendants, this testimony will go to the question of cohabitation as well as defendants' theory that plaintiff has a pattern of defrauding women by claiming an exclusive and committed relationship when he has no such actual intent. Defendants also note in reply that there is another issue. In plaintiff's opposition, he discloses that Ms. Escamilla caused a criminal investigation in Mexico to be opened as against defense counsel Armenta. Defendants also contend that they want to explore the basis of such claims.

Frankly, the court is torn.

Were this motion brought in 2024, the court almost certainly would have granted it. Out of state commissions are hardly uncommon and the bar is very low.

(Of course, the fact that the court issues the commission does not mean that the deposition will occur. There are, presumably, proceedings in Mexico that would need to go forward.) The court's concern is that this is one of many discovery motions, and the trial is coming in November—and this court fully intends to try the case on the date now set. Plaintiff has been contending that defendants are essentially papering him to death through discovery. And, he claims, that this will impede his ability to be ready for trial.

The court's concern is this.

There seems to be plenty of evidence concerning the alleged relationship between plaintiff and Ms. Escamilla.

Defendants already have emails, and apparently the two are married (or at least that is how it appears). The emails well pre-date the end of the Fuller/McCourt relationship. It is hard to see how a deposition in Mexico is critical to the case. And as to Mr.

Escamilla, it appears that this goes primarily to general credibility, and the court really does not believe that is appropriate. Further, as to the residence address, the court's recollection is that Fuller already admitted under oath that he lied on his application to the Mexican government in that regard. What gives the court more pause is the criminal investigation in Mexico. The court has seen Armenta in this case on many occasions. It is fair to say that she is an attorney who is dedicated to representing her client to the fullest extent, as she is ethically required to do. It is also fair to say that the court has not seen her cross any ethical lines, and

certainly not to the point of something potentially criminal. Armenta's contention that Ms. Escamilla and plaintiff may have acted in some inappropriate way to get the criminal investigation initiated seems plausible because this court's observation of her conduct would not give rise to any belief that she broke any laws in Mexico (or the United States, for that matter) in the conduct of this case. But that said, allowing the depositions for that purpose seems like the tail wagging the dog. The court questions whether any of that evidence would go to the jury given Evidence Code section 352 (assuming the defense even wanted to admit it).

Because of the trial's proximity and the time that it will take actually to conduct these depositions if they go forward (in Mexico), the court is inclined to DENY the motions based to a large extent on the need to keep the trial date. The court understands that defendants contend that these depositions will have no effect on the trial date. And that would be true were plaintiff represented by counsel with significant resources. But plaintiff is self-represented. While that does not excuse him from discovery, it does play into the balance of hardships that the court must consider for this kind of discovery four months before trial and about 90 days before the discovery cut off. On balance, the time and effort for the discovery is outweighed by the need to maintain the trial date and concentrate on other, more critical, discovery.